

PROFESSIONAL SERVICES RETAINER AGREEMENT

THIS AGREEMENT is made and entered into this **1st day of June, 2026**, by and between:

AI Precision Marketing (Hereinafter referred to as the “**Consultant**”)

– AND –

Option Excavating (Hereinafter referred to as the “**Client**”)

Attn: Nathan, Owner

1. Purpose & Scope of Engagement

The Client retains the Consultant to design, build, orchestrate, and implement a custom, enterprise-wide AI system and integrated application platform. The system is intended to centralize, automate, and optimize the Client's operations across multiple departments.

The scope of development includes, but is not limited to:

- **Asset & Inventory Management:** Tracking for over 200 pieces of excavating equipment and full parts inventory.
- **Workforce & Payroll:** Field clock-in/clock-out tracking, timesheets, and payroll integration.
- **Safety & Compliance:** Digital safety documentation, compliance tracking, and field reporting.
- **Operations & Maintenance:** Maintenance scheduling, service logs, and downtime tracking.
- **Financial Infrastructure:** Integration with financing, invoicing, and service costing.

2. Term & Agile Delivery Strategy

This Agreement is for an **ongoing monthly retainer**, commencing immediately.

Because of the highly customized and evolving nature of AI system architecture, the parties agree to an **Agile, Milestone-Based Framework** rather than a rigid hourly structure. Project velocity will be managed as follows:

- **Interim Nature of Agreement:** This Agreement is entered into on a temporary, interim basis. Both parties acknowledge that they are concurrently exploring the formation of a joint corporation or formal partnership structure that is mutually acceptable to both partners. Upon execution of such a corporation or partnership agreement, the parties may amend, supersede, or replace this Agreement accordingly. Until such time, the terms set out herein shall govern the engagement. In the event the parties form such a corporation or partnership, they shall negotiate in good faith the treatment of any retainer fees paid and any intellectual property or work product developed under this Agreement, including whether such amounts and work product are credited toward, contributed to, or assigned to the new entity.
- **Weekly Strategy Sessions:** At the beginning of each week, the Consultant and the Client (or designated department heads) will meet to establish a clear “game plan” and agree upon specific milestones to be achieved by the end of the week.
- **Phased Deployment & Testing:** New features and applications will be rolled out using a structured feedback loop:
 - 1 Internal development and refinement.
 - 2 Deployment to a **small field test group** to gather real-world data on what works and what needs adjustment.
 - 3 Iterative updates based on employee feedback and user experience.
 - 4 **Staff Training:** The Consultant will provide training to staff during the rollout phases to ensure seamless adoption before deploying features to the larger corporate group.

3. Immediate Priority Project: Owner's AI Assistant

To demonstrate immediate utility and maximize executive efficiency, the parties agree that **Phase 1** of this engagement will prioritize the Client's owner, Nathan.

- **Deliverable:** A personalized, custom AI assistant tailored to Nathan's daily operational, administrative, and strategic workflows.
- **Timeline:** A functional, basic system will be delivered to Nathan **by the end of the first week of this engagement**.
- **Evolution:** Following the initial deployment, this assistant will be continuously tweaked, updated, and built upon in parallel with the broader company platform.

4. Schedule & Work Location

To ensure deep context-gathering and successful integration across different departments, the Consultant will split time between the Client's corporate office and the Consultant's private development environment:

- **On-Site Office Days:** A minimum of **two (2) days per week**, and up to **three (3) days per week** if mutually agreed upon as necessary for specific departmental discovery, field testing, or staff training.

- **Remote Development Days:** The remainder of the workweek will be conducted remotely from the Consultant's development office, dedicated to the actual building, programming, and architecture of the applications and AI systems.

5. Financial Terms, Retainer, & Software Costs

- **Retainer Fee:** The Client agrees to pay the Consultant a flat fee of **\$10,000.00 CAD per month**. This is a fixed-fee retainer based on milestone delivery and dedicated availability. It is **not** subject to hourly tracking, auditing, or itemization.
- **Payment Terms:** The retainer is due and payable in advance on the first day of each billing cycle.
- **Development Phase Software & Token Costs:** During the active development, testing, and building periods of any application included in this retainer, **all third-party software subscriptions, API fees, and LLM token usages required to build and test the systems will be covered and paid for by the Client**. The Consultant will track these operational costs and the Client will reimburse them monthly or pay them directly.
- **Post-Handover Operational Costs:** Once an application or system feature is completed, finalized, and formally handed over to the Client for company-wide deployment, **the Client will fully assume 100% of the ongoing infrastructure costs, software subscriptions, and token usage fees required to run and maintain the platform within their company**.

6. Confidentiality & Intellectual Property

- **Confidentiality:** The Consultant agrees to maintain strict confidentiality regarding all non-public operational, financial, and business data of Option Excavating.
- **Intellectual Property:** Upon full payment of the monthly retainer, the custom configurations, application interfaces, and workflows developed specifically for Option Excavating will be proprietary to the Client. The Consultant retains ownership of core underlying methodologies, pre-existing code, and framework orchestration techniques.

7. Limitation of Liability & No Refunds

- **Services Rendered Basis:** Because this is an ongoing retainer for development and consulting services, all payments made to the Consultant are **final and non-refundable**.
- **Limitation of Liability:** The Consultant provides services on an agile, "as-is" basis based on the weekly priorities mutually agreed upon. Under no circumstances shall the Consultant be liable to the Client for any indirect, incidental, consequential, or punitive damages—including but not limited to lost profits, data loss, equipment downtime, or operational disruptions—arising out of the development or use of the applications. The Consultant's maximum aggregate liability for any reason under this agreement shall never exceed the total amount of fees actually paid by the Client to the Consultant during the specific month in question.

8. Termination & Clean Break

- Either party may terminate this ongoing agreement by providing **thirty (30) days written notice** prior to the start of the next billing cycle.
- Upon notice of termination, the Consultant will continue to work on agreed-upon weekly milestones during the 30-day notice period, and the Client remains obligated to pay for that final month. Following the 30 days, the agreement terminates with a clean break, and neither party shall owe further costs or liabilities to the other.

IN WITNESS WHEREOF, the parties hereto have executed this Retainer Agreement as of the date first written above.

For: Option Excavating Nathan, Owner

For: AI Precision Marketing Eric Wick, Founder & Consultant